

24STCV32431 24STCV32431

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Case Number: 24STCV32431 Hearing Date: July 22, 2026 Dept: 516

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Case Name: GH-Balboa 1998 L.P., et al.

v. The Pep Boys Manny & Jack of California LLC

Case

No.: 24STCV32431

Matter: Motion to Quash Motion to Quash Defendant's Subpoena
to KWP Real Estate, Ltd.

Moving

Party: Plaintiffs GH-Balboa

1998 and Wendell DeLano, as Trustee of the GH-Balboa Grandchildren's Trust

Responding Party: Defendant The Pep Boys Manny & Jack
of California LLC

Tentative

Ruling: Plaintiffs GH-Balboa 1998

and Wendell DeLano, as Trustee of the GH-Balboa Grandchildren's Trust's motion
to quash is granted in part and denied in part.

Plaintiffs

GH-Balboa 1998 and Wendell DeLano, as Trustee of the GH-Balboa Grandchildren's
Trust ("Plaintiffs") filed this action against Defendant The Pep Boys Manny
& Jack of California LLC ("Defendant"), and Does 1 through 50. The
Complaint alleges only one cause of action for breach of the written lease.

Plaintiffs

move to quash the subpoena for production of business records served on non-party KWP Real Estate, Ltd. ("KWP"). Defendant opposes.

Legal Standard

"If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

Analysis

Motion
to Quash

Plaintiffs

move to quash Defendant's subpoena served on non-party KWP Real Estate, Ltd., because the request is overbroad, unreasonable, oppressive, and irrelevant.

Plaintiffs

seek to quash two categories of Defendant's subpoena. The two categories are:

1. YOUR complete

file on this PROPERTY. [As used herein, the term "PROPERTY" shall mean and refer to the real property located within the shopping center at 11130 Balboa Boulevard, Granada Hills, CA 91344, which is the subject of the above-entitled action.]

3. All DOCUMENTS

pertaining YOUR efforts to lease the PROPERTY on behalf of PLAINTIFFS since PEP

BOYS 2013 LEASE expired on January 31, 2024, including without limitation all DOCUMENTS advertising the PROPERTY for lease, all listing agreements, all written offers to lease the PROPERTY, all term sheets for leasing the PROPERTY, records of COMMUNICATIONS with all potential lessees and COMMUNICATIONS with any person making inquiry regarding a potential lease of the PROPERTY.

(Eyerly Decl., Ex. A.)

Plaintiffs

argue that the requests are overbroad and not reasonably calculated to lead to admissible discovery. Plaintiffs argue that the time period and the location is not specified.

In opposition, Defendant argues that the request is not as overbroad as Plaintiffs argue.

Plaintiffs brought this action against Defendant for its alleged breach of the lease when it vacated the premises at the end of the term of the lease. The parties dispute the scope of the term and the location of the requested documents.

As to Request No. 1, Plaintiffs argue that the request is asking for records for more than the Subject Property in dispute. The Court is not persuaded by Plaintiffs' argument. Plaintiffs have not provided the Court with any evidence that the Subject Property is not located at 11130 Balboa Boulevard, Granada Hills, CA 91344. However, Defendants have not established the need or relevance of the complete file that KWP owns regarding the Subject Property for an indefinite period. Thus, the motion to quash request No. 1 is granted.

As to Request No. 3, the Court is not persuaded by Plaintiffs' claims that the second request is overbroad. The subject of dispute is Plaintiffs' damages for not being able to lease the Subject Property while making alterations and repairs to the Subject Property. The request is also specific in identifying the term of the requested documents, from the end of the lease to when the Subject Property was leased. Thus, the motion to quash request No. 3 is denied.

Sanctions

Plaintiffs and Defendant request

that the Court impose monetary sanctions on the opposing party. However, the Court finds that sanctions are not warranted because both parties acted with substantial justification.

Thus, the request for sanctions is denied.

Conclusion

Plaintiffs

GH-Balboa 1998 and Wendell DeLano, as Trustee of the GH-Balboa Grandchildren's Trust's motion to quash Defendant's subpoena is granted as to Request No. 1.

Plaintiffs

GH-Balboa 1998 and Wendell DeLano, as Trustee of the GH-Balboa Grandchildren's Trust's motion to quash Defendant's subpoena is denied as to Request No. 3.

Plaintiffs

and Defendant's request for sanctions is denied.